

Judgment Sheet
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH, BAHAWALPUR

JUDICIAL DEPARTMENT

Criminal Appeal No. 325 of 2017.

(Allah Rakha Vs. The State and another.

Date of hearing: 19.02.2020.
Appellant by: Sardar Afzaal Ahmad Mudahar, Advocate.
State by: Rao Muhammad Riaz Khan, Deputy District Public
Prosecutor.
Complainant/respondent Mr. Abu Bakar Shad, Advocate.
No.2. by:

SADIQ MAHMUD KHURRAM, J. – The appellant, namely, Allah Rakha son of Sher Muhammad along with his co-accused namely Abdul Rehman son of Abdul Sattar (since acquitted) was tried by the learned Additional Sessions Judge, Bahawalnagar in case FIR No.413 of 2015, dated 15.09.2015, registered at Police Station City A Division, District Bahawalnagar in respect of offences under sections 376 and 363 PPC. The learned trial court vide judgment dated 11.05.2017 convicted **Allah Rakha son of Sher Muhammad** (convict) and sentenced him as infra:

- i) Rigorous Imprisonment for twenty five years under section 376 PPC and directed to pay fine of Rs.50,000/-, compensation of Rs. 100,000/- to the victim and in case of default of payment of fine/compensation to further undergo Rigorous Imprisonment of 06-months.
- ii) Rigorous imprisonment for five years under section 363 PPC and directed to pay fine of Rs.50,000/- , and in case of default of payment of fine to further undergo Rigorous Imprisonment of 06-months .

The appellant was however, extended benefit available under Section 382 B of Code of Criminal Procedure, 1898 (hereinafter referred to as “Cr.P.C.) . Both the sentences were ordered to run concurrently.

(The co-accused of the appellant namely Abdul Rehman son of Abdul Sattar was however acquitted by the learned trial court).

2. Feeling aggrieved, Allah Rakha son of Sher Muhammad (convict) lodged the instant Criminal Appeal No. 325 of 2017 against his conviction and sentence.

3. The brief facts of the prosecution case, as stated by Shan Muhammad son of Ghulam Muhammad (PW-1) in his statement before the learned trial court are as under:-

“States that my daughter Amina Shan aged 13-years is student of 8th class and used to go to school on rickshaw. On 07.09.2015 my daughter Amina Shan went to school but she did not return to home. Rickshaw driver came to me at home and asked about Amin Shan whether she had returned home or not. I replied in negative. Rickshaw driver informed me that Amina Shan was not in school. I immediately accompanied with Rickshaw Driver and went to school where Chowkidar informed me that no body is at school. On the following day, t went to school and inquired about my daughter from Vice Principle Shahida who informed me that one Abdul Rehman came at School and introduced himself as brother of Amina Shan. Amina Shan went with him. While Principle was on leave therefore, she cannot hand over the record to me. On 11.09.2015 I asked her to refer my application to police who refused to do so and thereafter on 15.09.2015 I submitted application Ex-PA before the police for registration of formal FIR. Ex-PA is in my hand and bears my signature. FIR was lodged. Investigation was conducted by the police and on 05.10.2015 my daughter Amina Shan returned home sigh and cry. She narrated that when she reached the school with one Rabia, accused Abdul Rehman and Allah Rakha present in the court abducted them and took them to Pakpattan from where the accused Abdul Rehmand took Rabia Bibi to some unknown place. In the evening my daughter asked the accused Allah Rakha to release her upon which accused Allah Rakha threatened her and took her to some different places not known to her. Accused Allah Rakha used to committed forcible rape with my daughter. I send my daughter to the police station with her brother Mubashar where police recorded her statement. She was also medically examined on 07.10.2015. Her statement U/S 164 Cr.P.C was recorded by the learned

Area Magistrate. Amina Shan was also sent to Lahore for DNA analysis.

I told the whole occurrence to Abdul Majeed S/O Abdul Ghani and Sarfraz S/O Ghulam Rasool and they also told me that they saw Amina Shan in the company of accused. My statement was also recorded U/S 161 Cr.P.C.”.

4. After the formal investigation of the case report under section 173 of the Code of Criminal Procedure, 1898 was submitted before the learned trial court wherein the appellant namely Allah Rakha son of Sher Muhammad along with his co-accused namely Abdul Rehman son of Abdul Sattar (since acquitted) were sent to face trial. The learned trial court framed charges against the appellant on 14.11.2015 to which he pleaded not guilty and the learned trial court proceeded to examine the prosecution witnesses.

5. The prosecution in order to prove its case got recorded statements of **nine** witnesses. Shan Muhammad (PW-1) appeared before the learned trial court and made the statement as reproduced in para No.3 of the judgment. Amina Shan (PW-2), the *alleged victim* narrated the facts of the occurrence. Muhammad Iqbal 1050/C (PW-3) stated that on 27.10.2015 a teacher namely Iffat Naheed produced the copy of register showing the arrival and departure of Amina Shan (PW-2) from the school on 07.09.2015 and the same was taken into possession by the Investigating Officer through recovery memo (Exh.PB). Ayesha Bibi 169/LHC (PW-4) stated that on 05.10.2015 she produced Amina Shan (PW-2) for her medical examination. Haji Muhammad , A.S.I (PW-5) recorded the formal FIR (Exh.PA/1) on 15.09.2015. Dr. Liaquat Khalid, (PW-7) stated that on 07.10.2015 he examined Amina Shan (PW-2) and performed ultrasonography and prepared the report (Exh.PD). Dr. Muhammad Saqib (PW-8) examined the appellant on 13.10.2015 and found him to be sexually potent. Muhammad Taj, A.S.I, (PW-6) investigated the case from 15.09.2015 till 27.10.2015 , arrested the appellant on 10.10.2015 and detailed the facts discovered during the investigation in his statement before the learned trial court.

6. The prosecution also got examined Dr. Uzma Anwar, SWMO (PW-9) who was posted at DHQ, Hospital Bahawalnagar and on 05.10.2015

conducted the medical examination of the victim, namely Amina Shan (PW-2). Dr. Uzma Anwar, SWMO (PW-9) while examining Amina Shan (PW-2) observed as under:

“States that 05.10.2015 at 3:45 p.m. Mst. Amina D/O Shan aged about 13-Years Caste Mughal R/O Nizampurah Bahawalnagar was brought for by Ayesha 169/LHC alongwith her brother for medico legal examination. The identification mark was (i) black mole on right cheek, (ii) brown mole on the right cheek. I obtained thumb impressions of the examinee in the relevant column.

HISTORY:

According to the examinee two persons abducted her and her friend from gate of school on 07.09.2015 and kept her at a room at Pakpattan. Room was locked and person did sexual assault with her three times in a month. She ran away from that room on 03.10.2015. Last assault was done on 30.09.2015 in the area of Pakpattan. The assailant was one unknown and other details were given above. No such previous incident had taken place with the examinee. She did not disclose any detail of other party. She had no medical/surgical history. Her last LMP was not sure. Age of menstrual cycle started about one year back. I noted no current symptoms.

EXAMINATION OF CLOTHES:

The clothes were changed at the time of examination. Nothing was detected for cuts, tears, wholes, broken button, zipper etc. any kind of staining with blood, urine, faeces or staining with non- biological material on clothes.

PHYSICAL EXAMINATION.

Examinee was of average physique, confident, cooperative, was of average height and weight and was having no marks of violence.

LOCAL SPECIFIC EXAMINATION:

Hymen was torn with old healed margins. Vulva and vagina was healthy. There was a rupture of hymen which was old healed. There was no evidence of bleeding, staining with blood or any kind of seminal stain.

C-SYSTEM EXAMINATION:

I secured two external and two internal swabs for DNA, sealed them. I also advised ultrasonography test.

INITIAL OPINION:

Rupture of hymen, old healed margins. In my initial opinion, however, final opinion was to be given after receiving report of Chemical Examiner and DNA Analyst. I handed over the swabs envelope to Ayesha 169/LC. After receiving USG report by radiologist, I observed as follows:-

According to USG pelvis , uterus was N/S, A/V + A/F, nulliparous size is = 6.8 CMs X 3.8 X 2.8. There is no visible semen G/sack. The font size no RPOCs are seen in the utrine cavity. Only prominent and thick endometrial lining was visible.No evidence of pelvic trauma/abortion or free fluid was seen in the pelvic area.

Diagnosis: *NAD. Advised urine for beta-HCG level. Please correlate with clinical and lab findings.*

According to DNA report Sr. No.0000234693 dated 03.07.2016 the final result and conclusion was “no seminal material was detected on item 1 and 2(two vaginal swabs + two vaginal swabs), therefore, no further DNA profiling (short tandem repeat analysis) was conducted on these items. No analysis was conducted on item No.3 (blood sample of Amina Shan), Item S-I and Item V-I (buckle swab standard of Allah Rakha + Buckle swab standard of Amina Shan).

*In my final opinion no final evidence of presence of seminal material on item No.1&2. **No evidence of intercourse is present in this case.** MLC No. 1/34 Of Amina Shan is Ex-PE is in my hand and the correct carbon copy of the original one. Final opinion is Ex-PE/1 which is attested by me and contains my signature and stamp. I also endorsed application for medical examination of Mst. Amina Shan which is Ex-PE/2.”*

7. On 16.12.2016, the learned Deputy District Public Prosecutor gave up PW’s Abdul Majeed and Sarfraz being unnecessary. On 26.01.2017, the learned DDPP gave up PW Muhammad Sharif 732/C being unnecessary. On 17.03.2017, the learned Deputy District Public Prosecutor closed the prosecution evidence after tendering the statement of Mst. Amina Shan

recorded under section 164 of the Cr.PC (Exh.PG) and the report of Punjab Forensic Science Agency,Lahore (Exh PH)

8. After the closure of prosecution evidence, the learned trial court examined Allah Rakha son of Sher Muhammad (appellant), under section 342 Cr.P.C. and in answer to question why this case against you and why the PWs have deposed against you, he stated that he had been falsely involved in the case and further submitted that as his co-accused namely Abdul Rehman (since acquitted) had contracted marriage with the other abductee of the case namely Rabia Bibi (not produced) hence this false case was got lodged against him. Neither the appellant opted to get himself examined under Section 340(2) Cr.P.C nor adduced any evidence in his defence however the co-accused of the appellant namely Abdul Rehman (since acquitted) produced a certified copy of judgment pronounced in case FIR No. 401 of 2015 (Exh. DA) evidence in his defence.

9. On the conclusion of the trial, the learned Addl. Sessions Judge, Bahawalnagar convicted and sentenced the appellant as referred to above.

10. The contention of the learned counsel for the appellant precisely is that whole case is invented and untrue. That the prosecution remained unable to prove the facts in issue and did not produce any unimpeachable, admissible and relevant evidence. Learned counsel for the appellant submits that the appellant is quite innocent and has nothing to do with the alleged occurrence. He further submitted that the matter had been reported to the police with an inordinate delay. He further submitted that the prosecution has miserably failed to prove the charge against the appellant beyond the shadow of reasonable doubt and the learned trial court, while passing the impugned judgment of the appellant's conviction, has erred in law and facts of the case, which warrants interference by this court.

11. On the other hand, learned Deputy District Public Prosecutor along with the learned counsel for the complainant contended that the prosecution has proved its case beyond shadow of doubt by producing independent witnesses. They further submitted that there was no untoward delay in lodging the FIR. The learned Deputy District Public Prosecutor further submitted that it was a heinous offence and exploited the victim's future by the appellant at the

expense of his lust; that the victim was a lady and it cannot be expected from her to put her future at stake for the purpose to falsely implicate the appellant in this case for nothing; that delay in reporting the matter to the police has no adverse effect on fate of the prosecution case because in the cases where family honour is involved, immediate rushing to the police station for lodging the crime report and putting the honour at stake, is always difficult for anybody; that the medical evidence provided further corroboration to the ocular account; that the impugned judgment entailing the conviction and sentence of the appellant does not warrant interference by this Court. Lastly, they prayed for the rejection of appeal.

12. I have heard the learned counsel for the parties, learned Deputy District Public Prosecutor and with their assistance perused the record and evidence recorded during the trial carefully.

13. Learned Deputy District Public Prosecutor and the learned counsel for the complainant have stressed upon the rule of appreciation of evidence that the sole statement of the victim can be taken into account to maintain the conviction and sentence of the appellant under the charge of rape. However, the said rule is applicable only when the same is found to be confidence inspiring and trustworthy having corroboration from other independent source of evidence like the medical evidence. The self-contradictory statement of the victim is neither trustworthy nor confidence inspiring and, thus, the same is not worth reliance. This court has carefully and minutely perused the record. Dr. Uzma Anwar, SWMO (PW-9) had conducted the Medico-Legal Examination of the victim namely Mst. Amina Shan (PW-2) and observed that there was no sign of any injury, trauma or bruise on any part of the body of Mst. Amina Shan (PW-2). Dr. Uzma Anwar, SWMO (PW-9) deferred her final opinion with regard to the act of sexual intercourse till the receipt of report of Punjab Forensic Science Agency. Dr. Uzma Anwar, SWMO (PW-9) stated that she had seen the report of Punjab Forensic Science Agency and as per the said report, no seminal material was detected on Items submitted to the office of Punjab Forensic Science Agency, Lahore for DNA and serology analysis. But most significantly Dr. Uzma Anwar, SWMO (PW-9) opined conclusively as under:-

“In my final opinion no final evidence of presence of seminal material on item No.1&2. No evidence of intercourse is present in this case..”

In such state of affairs, the medical evidence provides no corroboration to the ocular account. Reliance is placed on the case of *“IBRAR HUSSAIN and others Versus THE STATE and another”* (2007 SCMR 605), wherein, the august Supreme Court of Pakistan has held as under:-

“It is a settled law that in rape/Hudood cases conviction can be awarded on the sole testimony of the victim subject to the condition that the statement of victim must inspire confidence. In the present case as mentioned above the statement of the victim is not inspiring-confidence at all and this fact was not considered by both the Courts below in its true perspective and the principle laid down by this Court in various pronouncements. We are pained to note that both Courts below had given benefit of doubt to the prosecution in violation of principle laid down by this Court in various pronouncements. It is a settled law that benefit of doubt always be given to the accused and this principle was violative by the Courts below.”

14. Additionally, this court has observed that according to Mst. Amina Shan (PW-2), the appellant namely Allah Rakha son of Sher Muhammad along with his co-accused namely Abdul Rehman son of Abdul Sattar (since acquitted) kidnapped her on 07.09.2015, when she was with Rabia Bibi (not produced) and both of them were taken to Pakpattan. The said Rabia Bibi neither joined the investigation of the case nor was examined as a witness by the prosecution during the trial. Rabia Bibi (not produced) was a necessary witness to prove the factum of kidnapping as alleged by the prosecution witnesses. This failure of the prosecution to produce Rabia Bibi (not produced) as a witness before the learned trial court is conspicuous by its absence. Article 129 of the Qanun-e-Shahadat Order, 1984 allows the courts to presume the existence of any fact, which it thinks likely to have happened, regard being had to the common course of natural events and human conduct

in relation to the facts of the particular case. Illustration (g) of the said Article 129 of the Qanun-e-Shahadat Order, 1984 provides as under:-

“(g) that evidence which could be and is not produced would, if produced, be unfavourable to the person who withholds it;”

This Court, therefore, is certain of the existence of this fact, by virtue of the Article 129 of the Qanun-e-Shahadat Order, 1984, that had the said Rabia Bibi (not produced) appeared before the learned trial court, she would have not supported the prosecution case. Reliance is placed on the case of Riaz Ahmad Vs. The State (PLJ 2010 SC 877) wherein the august Supreme Court of Pakistan has held as under:-

“One of the eye-witnesses Manzoor Hussain was available in the Court on 29.07.2002 but the prosecution did not examine him, declaring him as unnecessary witness without realizing the fact that he was the most important, only serving witness, being an eye-witness of the occurrence. Therefore, his evidence was the best piece of the evidence, which the prosecution could have relied upon for proving the case but for the reasons best known, his evidence was withheld and he was not examined. So a presumption under Illustration (g) of Article 129 of Qanun-e-Shahadat Order, 1984 can fairly be drawn that had the eye-witness Manzoor Hussain been examined in the Court his evidence would have been unfavourable to the prosecution.”

15. As has already been mentioned the appellant namely Allah Rakha son of Sher Muhammad was tried along with his co-accused namely Abdul Rehman son of Abdul Sattar (since acquitted). Shan Muhammad (PW-1) and Amina Shan (PW-2) deposed in unison as against the appellant and his co-accused namely Abdul Rehman son of Abdul Sattar (since acquitted). The

learned trial court did not believe the statements of the prosecution witnesses to the extent of the co-accused of the appellant, namely Abdul Rehman son of Abdul Sattar (since acquitted). The learned trial court acquitted the above mentioned co-accused of the charge. The Court has queried the learned Deputy District Public Prosecutor and the learned counsel appearing on behalf of the complainant regarding the filing or otherwise of an appeal against acquittal of the said co-accused, who have stated that the acquittal of Abdul Rehman son of Abdul Sattar (since acquitted) had attained finality as neither the State nor the complainant or any other aggrieved person had filed any appeal against the acquittal of Abdul Rehman son of Abdul Sattar (since acquitted). The question for determination before this Court now is that whether the evidence which has been disbelieved qua the acquitted co-accused of the appellant, can be believed against the appellant. The proposition of law in Criminal Administration of Justice, that a common set of witnesses can be used for recording acquittal and conviction against the accused persons who were charged for the commission of same offence, is now a settled proposition. The august Supreme Court of Pakistan has recently held that partial truth cannot be allowed and perjury is a serious crime. This view stems from the notion that once a witness is found to have lied about a material aspect of a case, it cannot then be safely assumed that the said witness will declare the truth about any other aspect of the case. This Court has noted that the view should be that "the testimony of one detected in a lie was wholly worthless and must of necessity be rejected." If a witness is not coming out with a whole truth his evidence is liable to be discarded as a whole meaning thereby that his evidence cannot be used either for convicting accused or acquitting some of them facing trial in the same case. This proposition is enshrined in the maxim *falsus in uno falsus in omnibus*. The august Supreme Court of Pakistan in Criminal Miscellaneous Application No. 200 of 2019 in Criminal Appeal No. 238-L of 2013 reported as PLD 2019 Supreme Court 527 has enunciated the following principles:-

“ The Pakistan Penal Code, 1860 (P.P.C.) contains many offences dealing with perjury and giving false testimony. The very fact that there is a whole chapter, numbered XI, dedicated to such offences amply testifies to the fact that matters relating to giving of testimony were taken very seriously by those who drafted the P.P.C. and their continued retention in the P.P.C. ever since reflects the will of the legislature, which is the chosen representative body of the people of Pakistan through which they exercise their authority within the limits

prescribed by Almighty Allah. The following sections, listed under Chapter XI titled "Of False Evidence And Offences Against Public Justice", highlight the fact that giving false testimony has been treated to be a very serious matter entailing some serious punishments.

191. Giving false evidence: Whoever being legally bound by an oath or by an express provision of law to state the truth, or being bound by law to make a declaration upon any subject, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, is said to give false evidence.

192. Fabricating false evidence: Whoever causes any circumstance to exist or makes any false entry in any book or record, or makes any document containing a false statement, intending that such circumstance, false entry or false statement may appear in evidence in a judicial proceeding, or in a proceeding taken by law before a public servant as such, or before an arbitrator, and that such circumstance, false entry or false statement, so appearing in evidence, may cause any person who in such proceeding is to form an opinion upon the evidence, to entertain an erroneous opinion touching any point material to the result of such proceeding, is said "to fabricate false evidence".

193. Punishment for false evidence: Whoever intentionally gives false evidence in any stage of a judicial proceeding, or fabricates false evidence for the purpose of being used in any stage of a judicial proceeding, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

and whoever intentionally gives or fabricates false evidence in any other case, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

194. Giving or fabricating false evidence with intent to procure conviction of capital offence: Whoever gives or fabricates false evidence, intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which is capital by any law for the time being in force, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine;

if innocent person be thereby convicted and executed: and if an innocent person be convicted and executed in consequence of such false evidence, the person who gives such false evidence shall be punished either with death or the punishment hereinbefore described.

195. Giving or fabricating false evidence with intent to procure conviction of offence punishable with imprisonment for life or for a term of seven years or upwards: Whoever gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which by any law for the time being in force is not capital, but punishable with imprisonment for life, or imprisonment for a term of seven years or upwards, shall be punished as a person convicted of that offence would be liable to be punished.

196. *Using evidence known to be false: Whoever corruptly uses or attempts to use as true or genuine evidence any evidence which he knows to be false or fabricated, shall be punished in the same manner as if he gave or fabricated false evidence.*

197. *Issuing or signing false certificate: Whoever issues or signs any certificate required by law to be given or signed, or relating to any fact of which such certificate is by law admissible in evidence, knowing or believing that such certificate is false in any material point, shall be punished in the same manner as if he gave false evidence.*

198. *Using as true a certificate known to be false: Whoever corruptly uses or attempts to use any such certificate as a true certificate, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.*

199. *False statement made in declaration which is by law receivable as evidence: Whoever, in any declaration made or subscribed by him, which declaration any Court of Justice, or any public servant or other person, is bound or authorized by law to receive as evidence of any fact, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, touching any point material to the object for which the declaration is made or used, shall be punished in the same manner as if he gave false evidence.*

200. *Using as true such declaration knowing it to be false: Whoever corruptly uses or attempts to use as true any such declaration, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.*

201. *Causing disappearance of evidence of offence, or giving false information to screen offender: Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false;*

if a capital offence: shall, if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life: and if the offence is punishable with imprisonment for life, or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

if punishable with less than ten years' imprisonment: and if the offence is punishable with imprisonment for any term not extending to ten years, shall be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth part of the longest term of the imprisonment provided for the offence, or with fine, or with both.

202. *Intentional omission to give information of offence by person bound to inform: Whoever, knowing or having reason to believe that*

an offence has been committed, intentionally omits to give any information respecting that offence which he is legally bound to give, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

203. Giving false information respecting an offence committed: Whoever, knowing or having reason to believe that an offence has been committed, gives any information respecting that offence which he knows or believes to be false, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

204. Destruction of document to prevent its production as evidence: Whoever secretes or destroys any document which he may be lawfully compelled to produce as evidence in a Court of Justice, or in any proceeding lawfully held before a public servant, as such, or obliterates or renders illegible the whole or any part of such document with the intention of preventing the same from being produced or used as evidence before such Court or public servant as aforesaid, or after he shall have been lawfully summoned or required to produce the same for that purpose, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

209. Dishonestly making false claim in Court: Whoever fraudulently or dishonestly, or with intent to injure or annoy any person, makes in a Court of Justice any claim which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

211. False charge of offence made with intent to injure: Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such proceeding or charge against that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both, and if such criminal proceeding be instituted on a false charge of an offence punishable with death, imprisonment for life or imprisonment for seven years or upwards, shall be punishable with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Holding that the rule falsus in uno, falsus in omnibus is inapplicable in this country practically encourages commission of perjury which is a serious offence in this country. A court of law cannot permit something which the law expressly forbids.

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Adverting to the Islamic principles relevant to the issue at hand we note that the following verses of the Holy Qur'an deal with the matter of giving testimony:

"And do not mix the truth with falsehood or conceal the truth while you know [it]"

(Surah Al-Baqarah: verse 42)

"And let not the witnesses refuse when they are called upon"

(Surah Al-Baqarah: verse 282)

"And do not conceal testimony, for whoever conceals it-his heart is indeed sinful"

(Surah Al-Baqarah: verse 283)

"O you who have believed, be persistently standing firm for Allah, witnesses in justice, and do not let the hatred of a people prevent you from being just. Be just, that is nearer to righteousness. And fear Allah; indeed, Allah is acquainted with what you do"

(Surah Al-Ma'idah: verse 8)

O you who have believed, be persistently standing firm in justice, witnesses for Allah, even if it be against yourselves or parents and relatives"

(Surah An-Nisa: verse 135)

So follow not [personal] inclination, lest you not be just. And if you distort [your testimony] or refuse [to give it], then indeed Allah is ever, with what you do, acquainted"

(Surah An-Nisa: verse 135)

"And establish the testimony for [the acceptance of] Allah"

(Surah At-Talaq: verse 2)

"...And we will not withhold the testimony of [i.e. ordained by] Allah. Indeed, we would then be of the sinful."

(Surah Al-Ma'idah: verse 106)

"And avoid false statement"

(Surah Al-Haj: verse 30)

"And they who do not bear witness to what is false"

(Surah Al-Furqan: verse 72)

From the above, it can be seen that giving testimony its due importance and weight is an obligatory duty and those who stand firm in their testimonies are among the people of righteousness and faith. Among the necessities of faith is giving truthful testimony even if against oneself or a relative. If there are no other witnesses that would enable justice to be done and there is a fear that someone's right may be lost, it then becomes the individual responsibility of the few available witnesses to testify. Islam not only enjoins giving testimony, it also forbids concealing it because concealing evidence is something that is disapproved in Islam and detested by nature. Giving false testimony has many evils for it supports falsehood against truth and

promotes injustice and aggression against justice. It also effaces fairness and equity and poses danger to public safety and security.

18. According to the corpus of traditions of the Holy Prophet (Peace Be Upon Him), false testimony is one of the greater sins and the following Ahadith demonstrate the significance attached to giving true testimony:

It was narrated by Hazrat Anas (RA) that the Prophet (PBUH) was asked about the great sins. He said, they are (1) To join others in worship with Allah; (2) To be undutiful to one's parents; (3) To kill a person (which Allah has forbidden to kill) (i.e. to commit the crime of murdering) and (4) to give a false witness.⁸

It was narrated by Hazrat Abdullah (RA) that the Prophet (PBUH) said if somebody takes a false oath in order to get the property of a Muslim (unjustly) by that oath, then Allah will be angry with him when he will meet Him.⁹

"To testify falsely tantamounts to polytheism." It is mentioned in Tafsir Abdul Al-Fath Razi that the Holy Prophet (PBHU) repeated said statement thrice and then quoted verse No. 30 of Surah Al-Haj stating that "... And avoid false statement."

19. The Offence of Qazf (Enforcement of Hadd) Ordinance, 1979 deals with the offence of Qazf, which has been defined by virtue of section 2 of the said Ordinance as:

"Whoever by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes an imputation of 'zina' concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm the reputation, or hurt the feelings, of such person, is said except in the cases hereinafter excepted, to commit 'qazf'."

The Holy Qur'an while dealing the offence of Qazf ordains that:

"And those who accuse chaste women and then do not produce four witnesses - lash them with eighty lashes and do not accept from them testimony ever after. And those are the defiantly disobedient"

(Surah Al-Noor: verse 4)

"And those who accuse their wives [of adultery] and have no witnesses except themselves - then the witness of one of them [shall be] four testimonies [swearing] by Allah that indeed, he is of the truthful"

(Surah Al-Noor: verse 6)

"And the fifth [oath will be] that the curse of Allah be upon him if he should be among the liars"

(Surah Al-Noor: verse 7)

"But it will prevent punishment from her if she gives four testimonies [swearing] by Allah that indeed, he is of the liars"

(Surah Al-Noor: verse 8)

"And the fifth [oath will be] that the wrath of Allah be upon her if he was of the truthful"

(Surah Al-Noor: verse 9)

The verses reproduced above highlight the importance Islam places on the requisite standard of evidence to be achieved. It can be seen that the Holy Qur'an puts a great emphasis upon the need to meet the requisite standard of evidence, so much so that for a person levelling the allegation of Zina but not meeting the given standard, it not only provides for a penal punishment, but also for withdrawal of such a person's civic right to give evidence in all matters of his life.

20. *Article 2 of the Constitution of the Islamic Republic of Pakistan, 1973 declares that "Islam shall be the State religion of Pakistan." Clause (1) of Article 227 of the Constitution mandates as follows:*

"All existing laws shall be brought in conformity with the Injunctions of Islam as laid down in the Holy Quran and Sunnah, in this part referred to as the Injunctions of Islam, and no law shall be enacted which is repugnant to such Injunctions."

According to Article 189 of the Constitution "Any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan". Declaring by this Court that the rule falsus in uno, falsus in omnibus is inapplicable in Pakistan is enunciation of a principle of law and has a binding effect. If inapplicability of that rule militates against the Injunctions of Islam and if such inapplicability cannot be enacted by the Parliament on account of its repugnance to the Injunctions of Islam then this Court may not be in a position to introduce such inapplicability through an enunciation of a principle of law or to continue with the same any more. A court of law cannot grant a licence to a witness to tell lies or to mix truth with falsehood and then take it upon itself to sift grain from chaff when the law of the land makes perjury or testifying falsely a culpable offence. A court also has no jurisdiction to lay down a principle of law when even the Parliament is expressly forbidden by the Constitution from enacting such a principle as law. The inapplicability of this rule in Pakistan was introduced by Chief Justice Muhammad Munir in the year 1951 at a time when Article 227 of the Constitution was not in the field but after introduction of the said constitutional prohibition the enunciation of law by his lordship in this field, like the infamous doctrine of necessity introduced by his lordship in the constitutional field, may not hold its ground now, as already predicted and foreseen by this Court in the case of Ghulam Sikandar (supra) in the following prophetic words:

"Expressed in a more direct manner a similar rule in the administration of criminal justice which is hall-mark of Islamic Jurisprudence, that when a witness has been found false with regard to the implication of one accused about whose participation he had deposed on oath the credibility of such witness regarding involvement of the other accused in the same occurrence would be irretrievably shaken. ----- The afore discussed main rule shall suffer serious change if and when it is examined in the light of the Islamic Principles."

21. *We may observe in the end that a judicial system which permits deliberate falsehood is doomed to fail and a society which tolerates it is destined to self-destruct. Truth is the foundation of justice and justice is the core and bedrock of a civilized society and, thus, any compromise on truth amounts to a compromise on a society's future as a just, fair and civilized society. Our judicial system has suffered a lot as a consequence of the above mentioned permissible deviation from the truth and it is about time that such a colossal wrong may be rectified in all earnestness. Therefore, in light of the discussion made above, we declare that the rule falsus in uno, falsus in omnibus shall henceforth be an integral part of our jurisprudence in criminal cases and the same shall be given effect to, followed and applied by all the courts in the country in its letter and spirit. It is also directed that a witness found by a court to have resorted to a deliberate falsehood on a material aspect shall, without any latitude, invariably be proceeded against for committing perjury."*

This Court is unable to find any independent corroboration against the appellant and is unable to distinguish the case of the appellant from the case of acquitted co-accused regarding the allegation of kidnapping Amina Shan (PW-2). This dishonesty on part of the witnesses has vitiated the trust of this Court in them. This Court, is thus satisfied that the evidence of Amina Shan (PW-2) and Muhammad Shan (PW-1) has no worth and is to be rejected outright.

16. This Court has also observed that despite the fact that Amina Shan (PW-2) was abducted on 07.09.2015, however, the matter was not reported to the police by Shan Muhammad (PW-1) till 15.09.2015. There is a haunting delay in reporting the matter to the police which casts a shadow of doubt upon the whole prosecution case and in absence of very strong circumstances pointing towards the guilt of the appellant, no implicit reliance can be placed upon the statement of Mst. Amina Shan (PW-2). There was no reason for Shan Muhammad (PW-1) not to have reported the matter of kidnapping of a young daughter for so many days. Shan Muhammad (PW-1) during his cross-examination admitted as under:-

"I had lodged the FIR after eight days."

The Investigating Officer of the case namely Muhammad Taj, A.S.I (PW-6) also admitted during cross-examination as under:-

"I had not written anywhere in my police diary about any explanation of eight days in lodging of FIR of this case."

The august Supreme Court of Pakistan in the case of "Abdul Khaliq Vs. The State" (1996 SCMR 1553) has held as under:

“It is a settled position of law that late recording of 161, Cr.P.C. statement of a prosecution witness reduces its value to nill unless there is plausible explanation for such delay”.

The august Supreme Court of Pakistan in the case of “Muhammad Khan Vs. Maula Bakhsh” (1998 SCMR 570) has held as under:

“It is a settled law that credibility of a witness is looked with serious suspicion if his statement under section 161, Cr.P.C is recorded with delay without offering any plausible explanation”.

The august Supreme Court of Pakistan in the case of “Syed Saeed Muhammad Shah and another Vs. The State” (1993 SCMR 550) at page 571 has held as under:

“In the absence of satisfactory nature of explanation normally rule is that statements recorded by police after delay and without explanation are to be ruled out of consideration. In this case unsatisfactory explanation which is not substantiated can be equated with no explanation”.

Furthermore, during cross-examination Amina Shan (PW-2) admitted as under:-

“ I remained at the house for one month. I performed all livelihood necessities during this period. I did not make any hue and cry or noise to attract the neighbourers(sic) of the house. I did not tell anyone that I was kept there being abductee”.

There was no reason for Amina Shan (PW-2) to have remained mum during the period of her captivity specially when she was free to move about and no restrictions had been placed upon her.

17. This Court has also observed with great disquiet that despite the prosecution story that the abductee namely Amina Shan (PW-2) had been kidnapped from her school, however, no employee of the said school ever appeared before the learned trial court to support this version of the prosecution. Amin Shan (PW-2) during cross-examination admitted as under:-

“ I left the school after ten minutes after getting my presence noted in attendance register. ”

This fact is very disturbing as Amina Shan (PW-2) had no reason to leave her school after she had marked her attendance therein. Furthermore, Shan Muhammad (PW-1) during cross-examination admitted as under:-

“ Police had not associated the officials of Government school in investigation where my daughter was studying. ”

.....

“I did not produce Madam Iffat in evidence (school teacher) who reported (sic) me that Abdul Rehman had taken away my daughter Amina Shan being her brother.”

.....

“We did not produce any witness with a statement that he had seen Amina Shan while going with the accused.”

The Investigating Officer of the case Muhammad Taj,A.S.I (PW-6) during cross-examination admitted as under:-

“ I had not recorded statement of any official of the girls school. However one SST teacher joined the investigation but I did not got record her statement. ”

This failure of the prosecution to produce as witnesses the employees of the Government school from where Amina Shan (PW-2) was kidnapped before the learned trial court is noticeable by its omission. This Court, therefore, is convinced of the existence of this fact, by virtue of the Article 129 of the Qanun-e-Shahadat Order, 1984, that had the said employees of the Government school from where Amina Shan (PW-2) was kidnapped appeared before the learned trial court, they would have not supported the prosecution case.

18. This Court has also observed with anxiety that according to the prosecutrix, Mst. Amina Shan, (PW-2), she was taken to the city of Pakpattan where the appellant continued to rape her but during the course of investigation the said place was not identified. Similarly, the Investigating Officer of the case namely Muhammad Taj A.S.I (PW-6) never visited the said place where Amina Shan (PW-2) was confined and raped. During cross-examination Shan Muhammad (PW-1) admitted as under:-

“ I or my daughter Amina Shan did not locate or pointed out the place in District Pakpattan where Amina was kept. ”

During the course of trial, the prosecution failed miserably to prove the place of occurrence. In absence of such certainty regarding the place of occurrence no reliance can be placed upon this portion of prosecution evidence.

19. Another aspect of the case is that Dr. Uzma Anwar, SWMO (PW-9) at the time of examining Amina Shan (PW-2) also recorded the history as narrated by Amina Shan (PW-2). Dr. Uzma Anwar, SWMO (PW-9) during her examination reproduced the history as under:-

“ HISTORY:

*According to the examinee two persons abducted her and her friend from gate of school on 07.09.2015 and kept her at a room at Pakpattan. Room was locked and person did sexual assault with her three times in a month. She ran away from that room on 03.10.2015. **Last assault was done on 30.09.2015 in the area of Pakpattan. The assailant was one unknown** and other details were given above. No such previous incident had taken place with the examinee. **She did not disclose any detail of other party.** She had no medical/surgical history. Her last LMP was not sure. Age of menstrual cycle started about one year back. I noted no current symptoms.”*

The failure of Amina Shan (PW-2) to name the appellant as the assailant while getting the history of the occurrence recorded before Dr. Uzma Anwar, SWMO (PW-9) speaks volumes about the veracity of the statement of Amina Shan (PW-2) . There was no reason for Amina Shan (PW-2) not to have named the appellant as the attacker while narrating the history of events to Dr. Uzma Anwar, SWMO (PW-9). This omission is also conspicuous by its absence and is irreconcilable as it is. Additionally, Dr. Uzma Anwar, SWMO (PW-9) had also observed as under:-

*“Hymen was torn with **old healed margins**. Vulva and vagina was healthy. There was a rupture of hymen which **was old healed**. There was no evidence of bleeding, staining with blood or any kind of seminal stain.*

Additionally, Dr. Uzma Anwar, SWMO (PW-9) admitted during cross-examination as under:-

“It is correct that I did not find any mark of violence on the whole body of the examinee or any mark of resistance or violence on the private parts of the examinee.”

The observations of Dr. Uzma Anwar, SWMO (PW-9) regarding the absence of any marks of violence on the whole body of Amina Shan (PW-2) and the observation that the hymen was torn and old healed is also incompatible and in conflict with the prosecution story.

20. Considering all the above circumstances, this court entertains serious doubt regarding the involvement of Allah Rakha son of Sher Muhammad (appellant), in the present case. It is settled principle of law that for giving benefit of doubt, it is not necessary that there should be so many circumstances rather if only a single circumstance, creating reasonable doubt in the mind of a prudent person, is available then such benefit is to be extended to an accused not as a matter of concession but as of right. The august Supreme Court of Pakistan in the case of “Muhammad Mansha Vs. The State” (2018 SCMR 772) has enunciated the following principle:

“Needless to mention that while giving the benefit of doubt to an accused it is not necessary that there should be many circumstances creating doubt. If there is a circumstance which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of such doubt, not as a matter of grace and concession, but as a matter of right. It is based on the maxim, “it is better that ten guilty persons be acquitted rather than one innocent person be convicted”. Reliance in this behalf can be made upon the cases of Tariq Pervez v. The State (1995 SCMR 1345), Ghulam Qadir and 2 others v. The State (2008 SCMR 1221), Muhammad Akram v. The State (2009 SCMR 230) and Muhammad Zaman v. The State (2014 SCMR 749).”

Reliance is also placed on the judgment of the august Supreme Court of Pakistan “Muhammad Akram Vs. the State” (2009 SCMR 230) in which it has been observed in paragraph No.13 of page 236 as infra:

“It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many

circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

21. For what has been discussed above, the instant Criminal Appeal No.325 of 2017 filed by Allah Rakha son of Sher Muhammad (appellant) is **accepted** and the conviction and sentence of the appellant Allah Rakha son of Sher Muhammad awarded by the learned Additional Sessions Judge, Bahawalnagar, vide judgment dated 11.05.2017 are hereby set-aside. Allah Rakha son of Sher Muhammad (appellant) is ordered to be acquitted. He is directed to be released forthwith if not required in any other case.

(SADIQ MAHMUD KHURRAM)
JUDGE

Raheel

Approved for Reporting.

JUDGE